SOFTWARE LICENSE AGREEMENT

This Software License Agreement ("Agreement") is entered into as of the 1st day of January, 2024, between Vandelay Inc., a corporation organized under the laws of Florida ("Licensor"), and Initech Corp., a corporation organized under the laws of Delaware ("Licensee").

Section 1. License Grant

Licensor hereby grants to Licensee a non-exclusive, non-transferable license to use the software known as "VandeSync Pro" ("Software") in object code form only. This license is limited to Licensee's internal business operations and may not be sublicensed, sold, or distributed to third parties without prior written consent from Licensor. The Software shall be used solely in accordance with the documentation provided by Licensor.

Section 2. Term

This Agreement shall commence on the date first written above and shall continue for a period of two (2) years, unless earlier terminated in accordance with the provisions hereof. Upon expiration, all rights granted hereunder shall immediately cease, and Licensee shall cease all use of the Software and return or destroy all copies in its possession.

Section 3. Termination

Either party may terminate this Agreement upon thirty (30) days' written notice to the other party. Licensor may terminate this Agreement immediately upon written notice if Licensee materially breaches any provision and fails to cure such breach within fifteen (15) days of receiving written notice of the breach. Upon termination, Licensee shall immediately cease using the Software and certify in writing its destruction or return of all copies.

Section 4. Fees and Payment

Licensee shall pay Licensor an annual license fee of five thousand dollars ($5,000.00) per year. The initial fee shall be due within thirty (30) days of the effective date of this Agreement. Subsequent annual fees shall be due on each anniversary date of this Agreement. All fees are non-refundable except as required by law. Licensee shall be responsible for all applicable taxes, excluding Licensor's income tax.

Section 5. Restrictions and Intellectual Property

Licensee shall not reverse engineer, disassemble, decompile, or attempt to derive the source code of the Software. Licensee shall not modify, adapt, or create derivative works based upon the Software. All intellectual property rights in the Software, including patents, copyrights, trade secrets, and trademarks, shall remain the exclusive property of Licensor. Licensee acquires no ownership interest in the Software.

Section 6. Limited Warranty

Licensor warrants that the Software will substantially conform to the documentation provided for a period of thirty (30) days from delivery. Licensor's sole liability for breach of this warranty shall be, at Licensor's option, repair of the Software or refund of fees paid. EXCEPT AS EXPRESSLY PROVIDED HEREIN, THE SOFTWARE IS PROVIDED "AS IS" WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING ANY WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

Section 7. Limitation of Liability

NEITHER PARTY SHALL BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOST PROFITS, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. LICENSOR'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID BY LICENSEE

IN THE TWELVE MONTHS PRECEDING THE EVENT GIVING RISE TO LIABILITY.

Section 8. Confidentiality

Each party shall maintain the confidentiality of proprietary information received from the other party and shall protect such information using reasonable safeguards. This obligation shall not apply to information that is publicly available or independently developed.

Section 9. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to its conflict of laws principles. Both parties irrevocably consent to the exclusive jurisdiction of the state and federal courts located in Florida.

Section 10. Entire Agreement

This Agreement constitutes the entire agreement between the parties and supersedes all prior negotiations and agreements, whether written or oral. No modification shall be effective unless made in writing and signed by authorized representatives of both parties.